

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

DOCKET NO. 25-02

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC AGREEMENT No.011982); EVERGREEN MARINE CORPORATION (TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.; EVERGREEN MARINE (SINGAPORE) PTE. LTD.; AND YANG MING MARINE TRANSPORT CORPORATION, *Respondents*.

Served: March 20, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

AMENDED SCHEDULING ORDER

On March 18, 2026, Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondents Evergreen Line Joint Service Agreement (FMC Agreement No. 011982); Evergreen Marine Corporation (Taiwan) Ltd.; Evergreen Marine (UK) Limited, Italia Maritima SpA; Evergreen Marine (Hong Kong) Ltd.; Evergreen Marine (SINGAPORE) Pte. Ltd. (collectively, “Evergreen”), and Yang Marine Transport Corporation (“Yang Ming”), filed their third joint status report and proposed amending the discovery schedule. On March 20, 2026, the parties submitted a Joint Motion to Extend Deadlines (“MTE”), seeking a 30-day extension of the remaining deadlines, with some dates modified to account for revised deadlines falling on a weekend. The parties submit that there is good cause to extend the schedule because of the amount of data collected that that must be reviewed “for relevancy, privilege, and confidentiality” (NBG has collected 3.4 million documents; Evergreen and Yang Ming estimate that just over 1 million documents will be collected for its production). MTE at 4.

The parties state that they have served initial requests for documents and interrogatories, submitted objections and responses, met and conferred to discuss and resolve any disputes, and executed an ESI protocol. *Id.* at 3. In addition, the parties are preparing a protective order.

The proposed 30-day extension of the schedule is reasonable, and good cause exists to extend it. Accordingly, it is **ORDERED** that the parties follow this amended schedule:

May 1, 2026	Substantial completion of production of documents and ESI pursuant to initial requests
June 18, 2026	Complete depositions of fact witnesses
June 29, 2026	Disclosure of initial expert reports, if any
July 1, 2026	Last day to serve interrogatories, requests for admission, and requests for production of documents
July 20, 2026	Disclosure of rebuttal expert reports, if any
August 3, 2026	Complete expert depositions
August 3, 2026	Close of discovery
August 31, 2026	Complainant's Brief, proposed findings of fact, appendix due
September 28, 2026	Respondent's Opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due
October 9, 2026	Complaint's Reply Brief, response to Respondent's proposed findings of fact due



Linda S. Harris Crovella
Administrative Law Judge